

HEADNOTE

“1. An action can be validly filed and served in accordance with Rule 13 of the Rules of Procedure without annexes if the statement of claim merely announces the submission of these annexes at a later time.

2. The requirement to grant the defendant a fair hearing with regard to annexes filed later can be met, if necessary, through fine-tuning of the time limit regime.”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP3666797

Antigen binding proteins to proprotein
convertase subtilisin kexin type 9
(pcsk9)

KEYWORDS

Service date

Calculation of time limits

Extension of time limits

Shortening of time limits

Notice

Filing of documents

Right to be heard

Rule 13 Contents of the Statement of claim

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to antigen binding proteins to proprotein convertase subtilisin kexin type 9 (PCSK9). According to the headnotes of the decision, a lawsuit can be properly filed and served even if supporting documents are not attached initially, provided the claimant commits to submitting them later. The court can ensure the defendant receives fair treatment regarding subsequently filed annexes by carefully adjusting the procedural deadlines available to each party.